



**THE
BERMAN
-LAW GROUP-**
(800) 375-5555
Post Office Box 272789
Boca Raton, FL 33427
Fax (561) 826-5201

ATTORNEYS AT LAW

Russell F. Berman †*	Courtney S. Clyne **‡
Theodore J. Berman †*	Jordan S. Davis **
Joseph C. Schulz †*	Haneen Kutub *
Morgan J. McGrath †*	Jennifer Petrovitch *
Zachary West **	Marissa Hanan **
Ryan M. Wechsler *	Thomas K. Fichtelman*
Sarah A. Mourer **	Bill Brice **
Nadia von Magdenko †	Maha Amircani †

† Partner

* Admitted to practice in the State of Florida

** Admitted to practice in the State of Florida and District Court

‡ Admitted to practice in the District of Columbia

† Admitted to practice in the State of Nevada

† Admitted to practice in the State of Georgia

October 29, 2018

VIA US MAIL & FAX (800) 922-9165

Sedgwick Claims
Attn: Kevin Parkin
P.O. Box 94696
Cleveland, OH 44101

Re: Our Client : Eva Gonzalez
Your Insured: Target Corporation
Claim No. : 000311358G-0001
D/Accident : March 24, 2018

Dear Mr. Parkin:

As you are aware, we have been retained to represent Ms. Gonzalez for personal injuries she sustained when she slipped and fell at your Target store located 1750 West 37th Street, Hialeah, FL. Please consider this letter as our TIME LIMIT demand for settlement purposes only on behalf of Ms. Gonzalez.

I. LIABILITY

On March 24, 2018, our client, Ms. Gonzalez, was walking in isle B23 in the kitchen department, when suddenly she stepped on loose paper and ribbons or the plastic wrappers were from inside of boxes then fell on her left knee. Due to the **negligence** of your maintenance department for **failure to maintain the property clean**, Ms. Gonzalez, sustained serious personal injury to her left knee, which later resulting in surgery. Had your manager and or maintenance personnel properly maintaining and conducting inspection of all areas, making sure it is hazard-free of all defect, Ms. Gonzalez would not have been injured.

EXHIBIT B

III. MEDICAL SUMMARY**A. Chiropractic**

On April 6, 2018, Ms. Gonzalez presented herself to _____ for chief complaints of the left knee and lumbar spine. A full evaluation was conducted and the following recommendation were noted. Ms. Gonzalez was placed on a program of physical therapy, three (3) times a week, which consisted of manual therapy, hot/cold therapy, kinetic activities, massages and strengthening conditioning. Ms. Gonzalez tolerated therapy well and continued treatment up until June, 18, 2018.

B. Orthopedic / surgical procedure

On July 14, 2018, August 11, 2018, and October 12, 2018, Ms. Gonzalez presented herself to _____ where she was treated by Dr. _____, for chief complaints of the left knee, cervical and lumbar spine. A full evaluation was conducted all medical records were reviewed. On July 14, 2018, Dr. _____ recommended a cortisone injection into the left knee, procedure was done the same day. Ms. Gonzalez presented her self again to Dr. _____ due to severe pain on the left knee, arthroscopy surgery was recommended and scheduled for October 4th, 2018. **OP Report and records are attached.**

C. MRI

On June 12, 2018, and August 18, 2018, Ms. Gonzalez presented herself to _____ for an MRI of the Left Knee and lumbar spine.

A copy of Ms. Gonzalez's MRI reports and bills are enclosed for your review.

IV. MEDICAL SPECIALS

PROVIDER	AMOUNT BILLED	AMOUNT PAID	BALANCE
	\$6,585.00	\$0.00	\$6,585.00
	\$32,416.00	\$0.00	\$32,416.00
	\$36,094.00	\$0.00	\$36,094.00
	\$3,200.00	\$0.00	\$3,200.00

	TO BE PROVIDED	\$0.00	
TOTALS:	\$78,295.00	\$0.00	\$78,295.00

V. OFFER TO SETTLE

Due to the severity of the injuries and the policy limits, we are offering to resolve this matter for your **policy limits** of **\$450,000.00**. Please be advised that this offer will remain open until November 14, 2017 at 5:00 pm (Eastern Time) .

The information contained in this demand is more than sufficient to determine that the injuries to our client, the economic and non-economic losses, (both past and future) will unequivocally exceed the policy limits protecting your insured.

Your failure to settle under the circumstances shall be deemed a refusal to act in good faith and at that time, we **WILL** retract our offer to settle and commence with litigation.

Finally, we must respectfully insists that you provide a copy of our Settlement Demand to your insured, and inform them of their rights, and to have an independent counsel appointed if fails to settle, which will result in **EXPOSURE TO EXCESS** damages in this case.

The settlement check should be made payable to Eva Gonzalez AND The Berman Law Group, LLC. (Tax ID# 26-1666223) located at **P. O. Box 272789, Boca Raton, FL 33427**. I look forward to an amicable resolution of this claim.

Very truly yours,

Theodore J. Berman, Esq.